CONSTITUTIONAL INITIATIVE NO. 133 (CI-133)

BALLOT LANGUAGE:

CONSTITUTIONAL INITIATIVE NO. 133

A CONSTITUTIONAL AMENDMENT PROPOSED BY INITIATIVE PETITION

The Montana constitution reserves to the people the powers of initiative and referendum. CI-133 amends the constitution to secure this fundamental right from interference by the government. Specifically, CI-133 requires impartial, predictable, open, and timely processes for ballot issues. Petitions and ballot statements must be approved within 90 days of the initial submission, and legal challenges to ballot qualification must be resolved before the deadline for finalizing ballots. CI-133 requires the state to allow ample time for signature gathering, prohibits disqualification of petitions because of minor or technical issues, allows voters to withdraw their signatures if they so choose, and prohibits the use of government resources to support or oppose a ballot measure.

[] YES on Constitutional Amendment CI-133
[] NO on Constitutional Amendment CI-133

COMPLETE TEXT:

BE IT ENACTED BY THE PEOPLE OF THE STATE OF MONTANA:

NEW SECTION. **Section 1.** Article II of The Constitution of the State of Montana is amended by adding a new section 37 that reads:

Section 37. Right to initiative and referendum. (1) The people have a fundamental right to exercise their powers of initiative and referendum under Article III and Article XIV. The government may not deny or burden this right unless justified by a compelling government interest achieved by the least restrictive means.

(2) This right guarantees impartial, predictable, transparent, and expeditious processes for proposing a ballot issue, qualifying a ballot issue for the ballot, and submitting a ballot issue to the qualified electors without interference from the government or the use of government resources to support or oppose the ballot issue. This right includes but is not limited to:

(a) proposing a ballot issue by submitting the full text of the ballot issue and proposed ballot statements, with the government modifying the proposed ballot statements only if they are not a true and impartial explanation expressed in plain, easily understood language;

(b) obtaining a determination regarding whether the ballot issue and ballot statements are legally sufficient for submission to the qualified electors prior to the petition being approved for circulation;

(c) the resolution of legal challenges to the determination made in subsection (2)(b) and the issuance of an approved petition for circulation within 90 days of the initial submission of the ballot issue to the government;

(d) reasonably ample time to gather signatures without unjustified burdens on signature gathering, on signature gatherers, or on the preparation or submission of signed petitions;

(e) verification of signatures and petitions without the invalidation of a signature or petition due to a technical or minor deficiency;

(f) the ability to withdraw one's signature from a petition, with the deadline for a withdrawal being the same as the deadline for submitting signed petitions to the government;

(g) the resolution of legal challenges to the qualification of a ballot issue for the ballot prior to the deadline for finalizing ballots for the election; and

(h) submission of a ballot issue to the qualified electors in an impartial manner for their approval or rejection by a majority of those voting thereon at a single election.

NEW SECTION. **Section 2. Self-executing**. [This act] is self-executing.

NEW SECTION. **Section 3. Effective date.** [This act] is effective on approval by the electorate.

ARGUMENTS FOR CI-133:

Vote yes on CI-133 to protect your right to propose and vote on laws that affect your life without government interference. CI-133 guarantees a fair, transparent, and timely ballot measure process.

What it means to vote YES on CI-133:

- YES on CI-133 protects the ballot measure process and safeguards your fundamental right to propose, vote on, and veto laws without government interference.
- YES on CI-133 bans the government from taking sides on ballot measures and using taxpayer money to sway your vote.
- YES on CI-133 requires impartial, predictable, open, and timely processes for approving petitions and ballot statements, resolving legal challenges, gathering signatures, and verifying signatures.

Lobbyists and outside interests have too much influence in Helena. That's why we need CI-133. It protects citizens' right to pass laws without interference from a government that caters to special interests and their money. Ballot measures give voters the power to keep the government accountable to us, not lobbyists.

Ballot measures are how citizens come together to protect and preserve what makes Montana great. Montana citizens across the political spectrum have passed ballot measures to protect our right to hunt and fish, cap taxes, protect public lands, restrict lobbying, expand access to healthcare for kids, raise the minimum wage, and keep the government out of our private, family medical decisions. By voting YES on CI-133, we protect the mechanism Montana citizens use to pass laws that protect and preserve Montana values.

Ballot measures give Montanans the voice we need to act as a check on government overreach. Ballot measures aren't just for passing laws, they allow citizens to veto bad laws when the government goes too far. We all deserve the chance to veto government overreach into our lives. CI-133 protects the right of "Citizens Veto" from government interference so we can have the final say without government putting its fingers on the scales.

Vote YES on CI-133 to protect our citizen initiative process and preserve Montana for ourselves and future generations.

Approval Committee: *Raphael Graybill, Jason Small, Tara Veazey*

ARGUMENTS AGAINST CI-133:

Vote NO on Constitutional Initiative No. 133.

If it ain't broke, don't fix it.

Montanans cherish our constitutional right to initiative and referendum, but CI-133 complicates our rights with a wordy and unnecessary amendment. It undermines representative government and invites abuse of the ballot process. CI-133 is a trojan horse for billionaires and out-of-state special interests to simply **purchase** the laws they want.

The fact that CI-133 is on the ballot, along with numerous other initiatives, is pretty good evidence that Montana has a healthy initiative process. Why would we "fix" a system that isn't broken? Why complicate a process that works for Montanans? Just vote no.

CI-133 restricts the ability of elected officials and courts to protect voters from flawed or deceptive measures. It handcuffs the Attorney General, Secretary of State, and Montana Supreme Court from doing basic due diligence.

Passing laws and constitutional amendments should not be taken lightly. When an initiative passes, it becomes binding law for a minimum of two years before it can be changed or undone.

Montana's current process – including financial and legal reviews – ensures initiatives are constitutional, transparent, and won't bankrupt the state. CI-133 scraps these commonsense protections, making it easier for well-funded special interests and paid signature gatherers to place poorly-drafted measures on the ballot.

The ballot initiative constitutional right was originally designed so Montana citizens can directly vote on popular ideas when elected officials aren't responsive to voters' desires. Today, though, special interests have discovered the process also allows them to simply **purchase the laws** that they want, if they spend enough money.

Ballot initiatives are becoming a "cottage industry," according to the *Helena Independent Record*. It's so common nowadays that it even has a standard price tag: **$1 million**.

> *"That's why in at least the last four election seasons, nearly every proposal that has made it onto the ticket has done so with the added manpower of paid signature gatherers, most of whom are working for companies that collect north of $1 million for their work on a single initiative in Montana…a run-of-the-mill price these days,"* reports the *Helena IR*.

CI-133 follows the same pattern. Out-of-state special interests spent $1 million to get CI-133 on your ballot, as the *Helena IR* also reported.

One of us writing this argument against CI-133 – Sen. Wylie Galt – went through the initiative petition process earlier this year myself.

> *While I ultimately decided not to pursue my initiative all the way to finish line, I can personally vouch that the process was not overly difficult. As a rancher, I fix broken things all the time. Montana's ballot initiative process is not broken. Our system works. CI-133 is unnecessary.*

CI-133 would **remove all reasonable checks and balances** on the ballot initiative process. That's a winning proposal for groups with $1 million or more to spend buying the laws they want, but it's a loser for Montanans who have to live under those laws.

Vote NO on CI-133.

Rejection Committee: *Senator Wylie Galt, Randy Brodehl, Representative Greg Overstreet, Charles Robison*

PROPONENTS' REBUTTAL OF ARGUMENTS AGAINST CI-133:

CI-133 keeps government accountable to us.

The same outside interests buying up our land, housing, and water have armies of lobbyists, lawyers, and political consultants working for them in Helena. The average Montanan's voice doesn't stand a chance of being heard against those odds.

We need CI-133 to protect our right to vote on laws that affect our lives and reject bad laws when the government oversteps, without interference from a government that caters to special interests and their money. Ballot measures are the citizen's voice and the citizen's veto.

CI-133 holds government accountable by:

1. Protecting your right to vote on laws that affect your life **without government interference.** CI-133 bans the government from taking sides on ballot measures or using taxpayer dollars to sway your vote.
2. Ensuring a **fair, transparent, and timely** ballot measure process so the ideas citizens want to put on the ballot get a fair shake from the government.

CI-133 does **NOT** do away with financial or legal reviews of ballot measures. It simply requires they be done impartially and efficiently – you're expected to do your job in a timely manner; why shouldn't the government?

The opponents say nothing is broken but also note ballot measures can cost $1M just to qualify for the ballot. That's because of government bureaucracy and red tape. When Montanans must spend millions just to exercise their rights, that's the definition of broken.

Vote yes on CI-133 to ensure a fair, transparent, and timely process for holding government accountable.

Approval Committee: *Raphael Graybill, Jason Small, Tara Veazey*

OPPONENTS' REBUTTAL OF ARGUMENTS FOR CI-133:

Supporters claim CI-133 protects people from lobbyists and government interference. There are solid reasons to vote no.

1. It mostly helps well-funded groups, not everyday citizens. Ballot initiatives sound democratic, but organized and wealthy interests—sometimes from out of state—often drive them. Collecting signatures is expensive and usually needs paid workers. Much of the money for CI-133 came from nonprofits that hide their donors. Past initiatives have passed popular ideas, but CI-133 would make it harder for elected lawmakers (who answer to voters) to fix problems or update laws.
2. "No government interference" is unrealistic and risky. Government must check signatures, review legality, stop fraud, and run elections smoothly. Strict new rules could cause rushed reviews, endless lawsuits over vague phrases like "minor mistakes" or "ample time," and confusion for election workers.
3. It weakens representative democracy. Montana is a republic with checks and balances. Initiatives are a helpful backup tool, not the main way to govern. Lawmakers face regular elections and must balance budgets and priorities. CI-133 would make future improvements to the initiative process much harder.

Bottom line: Voting no on CI-133 does not end the initiative process. It keeps the current system and avoids rigid new rules, more lawsuits, and less flexibility. The initiative tool is useful, but turning it into a super-protected right with unclear standards could favor well-funded campaigns over balanced government. Montanans should be careful about changing the Constitution to shield one process from normal oversight.

Rejection Committee: *Senator Wylie Galt, Randy Brodehl, Representative Greg Overstreet, Charles Robison*

What Your Vote Will Do

YES	A **YES** vote would **APPROVE** amending the Montana Constitution as proposed.
NO	A **NO** vote would make **NO CHANGE** to the current Montana Constitution.